

**Superior Court of the State of California
County of Orange**

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.

1. Visit <https://www.occourts.org/media-relations/aci.html>

Date: August 28, 2026

1	Huerta vs. Social Wings Buena Park, LLC 2025-01502338	Demurrer to Complaint Defendants SC Wings Buena Park, LLC, Buffalo Wild Wings, Inc., and Ryan Miller's Demurrer is SUSTAINED. Defendants demur to the twelfth cause of action for harassment and all causes of action as to defendant Buffalo Wild Wings, Inc.
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		Twelfth Cause of Action – Harassment “To establish a prima facie case of a hostile work environment, [Plaintiff] must show that (1) she is a member of a protected class; (2) she was subjected to unwelcome harassment; (3) the harassment was based on her protected status; (4) the harassment unreasonably interfered with her work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment.” (Ortiz v. Dameron Hospital Association (2019) 37 Cal.App.5th 568, 581). Here, the Complaint merely alleges Plaintiff was harassed because she is a Latina woman without stating the harassing conduct or facts demonstrating that her race or gender was a substantial factor in the discrimination. Such bare allegations are insufficient to state a cause of action for harassment. Accordingly, the demurrer to the twelfth cause of action is SUSTAINED. All Causes of Action as to Buffalo Wild Wings, Inc. “To evaluate whether an entity is an employer for FEHA purposes, courts consider the totality of circumstances and analyze several factors, principal among them the extent of direction and control possessed and/or exercised by the employer over the employee.” (Jimenez v. U.S. Continental Marketing, Inc. (2019) 41 Cal.App.5th 189, 193.) Courts have recognized that franchisors are not joint employers without the exercise and control of the wages, hours and working conditions. (See Patterson v. Domino’s Pizza, LLC (2014) 60 Cal.4th 474, 499 (finding that franchisor was not the employer because it lacked general control of an employee over relevant day-to-day aspects of the employment and workplace behavior of the franchisee’s employees.].)
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		In this case, the Complaint merely alleges Buffalo Wild Wings, Inc. was Plaintiff's joint employer or alter ego of defendant SC Wings Buena Park, LLC. However, there are no facts alleged to support this conclusion. Therefore, Plaintiff has not sufficiently alleged facts that Buffalo Wild Wings is liable as a joint employer. Accordingly, the demurrer to the twelfth cause of action is SUSTAINED. Plaintiff has 15 days leave to amend. Moving Parties shall give notice.
2	Regions Bank vs. Totorica Plumbing, Inc. 2025-01516311	Motion for Summary Judgment and/or Adjudication Plaintiff Regions Bank dba Ascentium Capital's Motion for Summary Judgment is GRANTED. "The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that he is entitled to judgment as a matter of law. That is because of the general principle that a party who seeks a court's action in his favor bears the burden of persuasion thereon. (See Evid. Code, § 500.) There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850 (fn omitted).) Code of Civil Procedure section 437c, subdivision (p)(2) states, "A defendant or cross-defendant has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause